

Re: Request for Approval (Salesforce OSP Addendum)

John Sweetman <jsweet@us.ibm.com>

Wed 8/24/2022 4:31 PM

To: Dawn M Pesko <pesko@us.ibm.com>; Saul J Berman <saul.berman@us.ibm.com>; Megan Piccininni <Megan.Piccininni@ibm.com>

Dawn, I approve - and thank you!

John

John Sweetman

Global Category Chair, Software Strategic Sourcing

Finance & Operations, Global Procurement

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IBM

From: Dawn M Pesko <pesko@us.ibm.com>

Sent: Wednesday, August 24, 2022 2:42 PM

To: Saul J Berman <saul.berman@us.ibm.com>; Megan Piccininni <Megan.Piccininni@ibm.com>; John Sweetman <jsweet@us.ibm.com>

Cc: Dawn M Pesko <pesko@us.ibm.com>

Subject: Request for Approval (Salesforce OSP Addendum)

Please see the attached and provide your approval-

Note to approvers

All Approvers: This is a request for electronic formal approval of the contract attached and described below

Please reply to me with words indicating your unconditional approval or disapproval (i.e., "I APPROVE") for the document(s). *NOTE: By indicating approval you certify that (a) the terms and conditions are consistent with the facts under which the products and/or services will be provided, (b) you concur that the terms and conditions set forth are workable and can be complied with for the term of the Agreement, and (c) you are authorized to approve for contracts per your organization's guidelines. Unless otherwise requested by the responsible Executive or Delegate, Procurement is delegated the responsibility to execute all contracts after approval is granted. All approvals must be received before execution of the Agreement by Procurement.

Approvals are from the following IBMers:

Contract Approvers:

OSP Addendum executive stakeholder: Saul Berman (IBM Consulting SR Partner)	Approval Required
OSP Addendum executive stakeholder: Megan Piccininni (IBM Consulting Partner)	Approval Required
IBM Legal- Tina Moon- Lee (Counsel)	Approval Required
IBM Consulting CISO/BISO - Chad Helenthal/Craig Heiman (note: consultation with Michael Spraggue re: Data Privacy- terms to be included in IBM/Client Agreement)	Acknowledgement Obtained on 8/22/2022 and attached hereto(See attached file: SF OSP BISO_CISO.pdf)
Procurement - John Sweetman	Approval Required

Contract Name	Contract Number	Softcopy	Contract Summary
Addendum to Master Subscription Agreement #4906PK0281 dated January 5, 2007	Addendum to 4906PK0281	(See attached file: IBM Addendum for Sigs 220824.pdf)	Summary: Addendum to the existing IBM/Salesforce MSA whereby IBM is the licensee of SFDC SaaS for the purpose of providing IBM Clients with business process outsourcing services via commercial offerings as mutually agreed to by IBM and Salesforce Key Terms: 1. No minimum spend commitment for IBM under this Addendum; commitment is made in separate Order Forms which identifies the specific Client, qtys/products, pricing, and local provisions 2. Two year term which auto renews thereafter unless terminated by either party in accordance with the Addendum 3. Payment terms non standard- net 60 (executive exception approval on file under MSA) 4. Re balancing rights from one org to another with prior written notification 5. Transfer of Control of org rights 6. No PAs are required however each IBM affiliate is liable for obligations incurred under this Addendum

			Risks/Items Business needs to address: 1. If a Client has more then one location and there are multiple IBM Affiliates entering into Order Forms for the same Client then SF may take down entire org if there is an issue so either 1. business has to enter into separate Order Forms based on IBM Affiliate which results in separate orgs 2. business has to flow all incremental orders through one IBM Affiliate and work with operations/finance/tax to develop process/MOU to mitigate risk 2. Flow down terms to Client are required including but not limited to : SLA (Exhibit B of Amend 1 to MSA) , Data Privacy based on the terms that IBM and SF have in place 3. SF will not agree to PA structure and therefore all the language from a PA necessary to effectuate an agreement between the IBM affiliate and SF, and all terms in the PA required for local law purposes should be included in the Order Form.
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Dawn M. Pesko

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Finance & Operations, Global Procurement

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IBM